

All reports of patient abuse, neglect, misappropriation or patient property, and injury of an unknown source shall be promptly and thoroughly investigated.

1. When an incident or suspected incident of patient abuse, neglect, misappropriation of patient property, or injury of an unknown source is reported, the Administrator or appointed designee will investigate the incident.
2. The administrator will provide to the person in charge of the investigation a copy of the patient abuse report form and any supporting documents relative to the incident.
3. The investigation shall consist of:
 - a. A review of the completed Resident Abuse Report Form'
 - b. an interview with the person(s) reporting the incident;
 - c. Interviews with any witnesses to the incident'
 - d. an interview with the patient
 - e. An interview with the patient's attending physician and review of the patient's medical record;
 - f. An interview with the staff members (on all shifts) having contact with the resident during the period of the alleged incident'
 - g. Interviews with the patient's family members, and visitors, or others who provide care to the patient.
4. Witness reports shall be reduced to writing. Witnesses will be required to sign and date such reports. (Note: A copy of such reports must be attached to the Abuse Investigation Report Form.)
5. The Person In charge of the abuse investigation will notify the ombudsman that an abuse investigation is being conducted. The ombudsman will be invited to participate in the investigation process.
6. Should the Ombudsman decline the invitation to participate in the investigation, a notation of such data will be entered into the investigation record. The Ombudsman will be notified of the results of the investigation.
7. While the investigation is being conducted, accused individuals not employed by the Agency will be denied unsupervised access to the patient. Visits may be made in designated areas approved by the Administrator.
8. Employees of the Agency who have been accused of resident abuse will be reassigned to non-patient care status or suspended from work until the Administrator has reviewed the results of the investigation.
9. The person in charge of the investigation will consult with the Administrator daily concerning the progress of the investigation.
10. the Administrator will keep the patient and his/her family/representatives informed of the progress of the investigation
11. the results of the investigation will be recorded on the Patient Abuse Investigation Report Form
12. A copy of the completed Patient Abuse Investigation Report Form will be provided to the Administrator within five (5) working days of the reported incident.
13. The Administrator will inform the resident and his/her family/representative of the results of the investigation and corrective action taken.
14. Should the investigation reveal that the abuse occurred, the Administrator will report such findings to the local police department, the ombudsman, and the state-licensing agency within twenty-four (24) hours of the results of the completion of the investigation.
15. The results of all investigation shall be reported to the state survey and certification agency within five (5) days of the completion of the investigation.

16. All reports of abuse are investigated by a state licensed agency. Should the licensing agency determine that abuse occurred; state officials will forward the appropriate notices to the accused individual and to the Agency Administrator.
17. Should the investigation reveal that a false report was made/filed, the investigation will cease. Patients, family members, ombudsman, state agencies, etc. will be notified of the findings. (Note: Disciplinary actions concerning the filing of false reports are outlined in the Agency's personnel manual).
18. Policies governing abuse reporting are outlined in a separate policy entitled "Abuse Reporting"
19. Inquiries concerning abuse reporting and investigation should be referred to the Administrator or to the director of patient services.

Abuse Reporting

All personnel must promptly report an incident or suspected incident of abuse, including injuries of an unknown source and misappropriation of resident property.

1. Our Agency will not condone patient abuse by anyone, including staff members, consultants, volunteers, staff of other agencies serving the resident, family members, legal guardians, sponsors, friends or other individuals.
2. Any alleged violations involving mistreatment, neglect or abuse, including injuries of an unknown source and misappropriation of resident property, must be reported to the Administrator.
3. When an alleged or suspected case of mistreatment, neglect, injuries of an unknown source, or abuse is reported, the Agency Administrator, or his/her designee will notify the following persons of agencies, of such incident within specified timeframe. The Agency must report such information within four (4) hours, unless otherwise specified to the appropriate law enforcement agency, which is the Commission of Ageing or its area agencies.
 - a. Adult Protective Services (Immediately)
 - b. Law Enforcement Officials
 - c. Agency Representatives
 - d. Health and Welfare
 - e. Adult Protection
 - f. Child Abuse
 - g. Local law Enforcement (911)
4. All personnel, patients, visitors, etc., are encouraged to report incidents of abuse or suspected incidents of abuse. Such reports may be made without fear of retaliation from the facility or its staff.
5. To assist our agency staff members in recognizing incidents of abuse, the following definitions of abuse are provided:
 - a. Abuse is defined as the willful infliction of injury, unreasonable confinement, intimidation, or punishment with resulting physical harm or pain or mental anguish, deprivation by an individual, including a caretaker of goods or services that are necessary to attain or maintain physical, mental, and psychosocial well-being.
 - b. Verbal abuse is defined as any use of oral, written or gestured language that includes disparaging, derogatory terms to patients or their families or within their hearing distance, to describe patients, regardless of their age, ability to comprehend, or disability.

- c. Sexual abuse is defined as, but is not limited to, sexual harassment, sexual coercion, or sexual assault.
 - d. Physical abuse is defined as hitting, slapping, punching, kicking, etc. It also includes controlling behavior through corporal punishment.
 - e. Mental abuse is defined as, but is not limited to, humiliation, harassment, threats of punishment, or withholding of treatment or services
 - f. Neglect is defined as failure to provide goods and services necessary to avoid physical harm, mental anguish, or mental illness.
6. The person(s) observing an incident of patient abuse or suspected patient abuse must immediately report such an incident to the Administrator. The following information should be reported to the Administrator:
 - a. The name of the resident(s) involved
 - b. the date and time that the incident occurred
 - c. Where the incident took place
 - d. The name(s) of the person(s) committing the incident, if known
 - e. the type of abuse that was committed (i.e.: verbal, physical, sexual, neglect, etc.)
 - f. And other information that may be requested by the Administrator or designee.
7. Upon receiving reports of physical or sexual abuse, the Administrator shall immediately examine the patient. Findings of the examination must be recorded in the patient's PCS notes. (Note: If sexual abuse is suspected, DO NOT bathe the patient or wash the patient's clothing or linens. Call the police immediately.)
8. The Administrator or designee must complete a Patient Abuse Report Form and obtain a written, signed, and dated statement from the person reporting the incident.
9. A completed copy of the Patient Abuse Report Form and written statements from witnesses, if any, must be provided to the Administrator within twenty-four (24) hours of the occurrence of such incident. An immediate investigation will be made and a copy of the findings of such investigation will be provided to the Administrator within five (5) working days of the occurrence of such incident.
10. When an incident of patient abuse is suspected or determined, such incidents may be reported to the Administrator regardless of the time lapse since the incident occurred. Reporting procedures should be followed as outlined in this policy.

Employee Signature

Date

Caring Hearts Administrator or Designee Signature

Date